

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2022-CC-004105

JEANIE GRACE DICICCO,
HOWARD VINCENT BLACKWELL
and ANY UNKNOWN TENANT(s),
Defendants.

NOTICE OF FILING CASE LAW

COMES NOW, the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, by and through their undersigned attorney, hereby gives notice of filing the following case relating to the above referenced matter, to-wit:

Ortuzar v. Foley,
339 So. 3d 456 (Fla. 2d DCA 2022)

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Notice of Filing Case Law has been furnished in accordance with Florida Rule of Judicial Administration 2.516 to John P. Fleck, Jr., Esquire, 1111 Ninth Avenue West, Suite C, Bradenton, FL 34205, at manateecountylaw@aol.com, to Christopher M. Hittel, Esquire, 333 6th Avenue West, Bradenton, FL 34205, at service@hittellaw.com and to ANY UNKNOWN TENANT(s) at 900 9th Avenue East, Lot #155, Palmetto, Manatee County, FL 34221 on this 24th day of July, 2023.

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Ortuzar v. Foley

Court of Appeal of Florida, Second District

May 18, 2022, Decided

No. 2D21-1262

Reporter

339 So. 3d 456 *; 2022 Fla. App. LEXIS 3373 **; 47 Fla. L. Weekly D 1078

EDGAR J. ORTUZAR, Appellant, v. DANA D. FOLEY, Appellee.

Prior History: [****1**] Appeal from the County Court for Hillsborough County; Joelle Ann Ober, Judge.

Core Terms

attorney's fees, decree, trial court, prevailing party, insured, lease, voluntary dismissal, awarding, merits, award of attorney's fees, entitled to fees, notice, trial court's determination, statutory interpretation, de novo standard, ordinary meaning, final judgment, file a notice, nonprevailing, prevailing, provisions, paramount, depends, parties, argues, cases, evict, inure

Case Summary

Overview

HOLDINGS: [1]- Because the trial court did not render a judgment or decree in her favor, a tenant was not entitled to a fee award under the plain language of § 83.48, Fla. Stat. (2020), and the lease; [2]- Giving the phrase "judgment or decree" its plain and ordinary meaning, § 83.48 required an adjudication of the merits in favor of the party seeking fees, and a voluntary dismissal without prejudice was not an adjudication of the merits. Accordingly, the trial court lacked authority to award fees in favor of the tenant since no judgment or decree was rendered in her favor after the notice of voluntary dismissal was filed.

Outcome

Judgment awarding attorney's fees to tenant reversed.

Counsel: Mark J. Albrechts of Law Office of Mark J. Albrechts, Tampa, for Appellant.

Gary M. Schaaf of Becker & Poliakoff, P.A., Tampa, for Appellee.

Judges: LABRIT, Judge. CASANUEVA and VILLANTI, JJ., Concur.

Opinion by: LABRIT

Opinion

[***457**] LABRIT, Judge.

Appellant Edgar Ortuzar appeals an award of attorney's fees to Appellee Dana Foley stemming from a residential eviction case. We reverse because Ms. Foley is not entitled to fees under the applicable statute or the lease.

Background

In October of 2020, Mr. Ortuzar sued to evict Ms. Foley from property Mr. Ortuzar owned. The trial court ordered the parties to mediation. Shortly thereafter, Mr. Ortuzar filed a notice of voluntary dismissal which stated that "this cause has been resolved between [the] parties." Neither party requested the trial court to enter an order on the

notice or final judgment on Mr. Ortuzar's claim, and no such order or judgment is in the record.

Three weeks after the dismissal notice was filed, Ms. Foley moved for "prevailing party" attorney's fees. The trial court granted the motion and entered a final judgment awarding Ms. Foley \$3,500 in attorney's fees "pursuant to [s]ection 83.48, Florida Statutes and [p]aragraph [**2] 26 of the lease at issue." The court found that Ms. Foley was the prevailing party within the meaning of the statute and the lease because [*458] Mr. Ortuzar had filed the notice of voluntary dismissal. Mr. Ortuzar timely appealed.

Discussion

We generally review a "trial court's determination of the prevailing party" for abuse of discretion, but we apply a de novo standard "when the trial court's determination of which party prevails depends on the interpretation of a statute or contract." *IOU Cent. Inc. v. Pezzano Contracting & Dev., LLC*, 311 So. 3d 295, 298 (Fla. 2d DCA 2020); *see also Kelly v. BankUnited, FSB*, 159 So. 3d 403, 405 (Fla. 4th DCA 2015). We apply the de novo standard here because the trial court's award of attorney's fees to Ms. Foley depends on the interpretation of section 83.48, Florida Statutes (2020), and the lease.

In relevant part, section 83.48 provides that "[i]n any civil action brought to enforce the provisions of the rental agreement . . . the party in whose favor a judgment or decree has been rendered may recover reasonable attorney fees and court costs from the nonprevailing party." *Id.* (emphasis added).¹ Generally speaking, "[s]tatutes awarding attorney's fees must be strictly construed." *Fla. Hurricane Prot. & Awning, Inc. v. Pastina*, 43 So. 3d 893, 895 (Fla. 4th DCA 2010) (citing *Willis Shaw Express, Inc. v. Hilyer Sod, Inc.*, 849 So. 2d 276, 278 (Fla. 2003)).

Mr. Ortuzar argues that the trial court erred by

awarding Ms. Foley attorney's fees since no judgment or decree was rendered in Ms. Foley's [**3] favor after the notice of voluntary dismissal was filed. We agree. Because the trial court did not render a judgment or decree in her favor, Ms. Foley was not entitled to a fee award under the plain language of the statute and the lease.

Pointing to *Thornber v. City of Fort Walton Beach*, 568 So. 2d 914, 919 (Fla. 1990), Ms. Foley argues that she is entitled to fees as the prevailing party because Mr. Ortuzar voluntarily dismissed the suit. *Thornber* is inapposite. It involved section 111.07, Florida Statutes (1981), which authorized reimbursement of attorney's fees to "prevailing defendants" in suits against public officials. *Thornber*, 568 So. 2d at 918. As the supreme court explained, "[a] determination on the merits is not a prerequisite to an award of attorney's fees where the statute provides that they will inure to the prevailing party." *Id.* at 919.

Section 83.48 does not provide that attorney's fees will inure to "the prevailing party"; it provides that a party in whose favor "a judgment or decree has been rendered" may recover fees from the nonprevailing party. As in all matters of statutory interpretation, our duty is to give this text its plain and ordinary meaning. *See Debaun v. State*, 213 So. 3d 747, 751 (Fla. 2017). A "judgment" is a final adjudication of the merits of an action, *see Makar v. Investors Real Estate Management*, 553 So. 2d 298, 299 (Fla. 1st DCA 1989), and a "decree" is a judgment in an equitable action, *see Nichols v. Bodenwein*, 107 Fla. 25, 146 So. 86, 93 (Fla. 1932); *see also Decree*, Black's Law Dictionary [**4] (11th ed. 2019) ("The chief differences between decrees in equity and judgments at common law are as follows: The former are pronounced by courts of equity; the latter, by courts of law."). Giving the phrase "judgment or decree" its plain and ordinary meaning, section 83.48 requires an adjudication of the merits in favor of the party seeking fees. And a [*459] voluntary

¹ The fee provision in the lease tracks the statutory text and provides that "[i]n any lawsuit brought to enforce the Lease or under applicable

law, the party in whose favor a judgment or decree has been rendered may recover reasonable court costs, including attorneys' fees, from the non[prevailing party]." (Emphasis added.)

dismissal without prejudice² is not an adjudication of the merits. *See Makar*, 553 So. 2d at 298-99. Accordingly, the trial court lacked authority to award fees in favor of Ms. Foley. *Id.* at 299 ("Attorney's fees are permitted only in those classes of cases the legislature has specifically identified" and that courts cannot "enlarge[] or expand[]" a statute "to cover cases not falling within its provisions.").

Section 83.48 is functionally equivalent to section 627.428, Florida Statutes (2021), which authorizes an award of attorney's fees to an insured "upon the rendition of a judgment or decree . . . against an insurer and in favor of any named or omnibus insured . . . under a policy or contract executed by the insurer." *See Traveler's Indem. Co. v. Chisholm*, 384 So. 2d 1360, 1361 (Fla. 2d DCA 1980) (stating that "[s]uch a fee award pursuant to statute is recognized as a penalty provision"). In the context of section 627.428, the trial court's jurisdiction "to award attorney's fees . . . is dependent upon [**5] conditions imposed by the statute. The paramount condition is the entry of a judgment against the insurer and in favor of the insured." *Id.* So, too, in the context of section 83.48, the "paramount condition" that must be met for a trial court to award attorney's fees is that a judgment or decree must be rendered in favor of the party seeking fees. And none was. We therefore reverse the judgment awarding attorney's fees to Ms. Foley.

Reversed.

CASANUEVA and VILLANTI, JJ., Concur.

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² Mr. Ortuzar's notice of voluntary dismissal was silent as to whether

it was with or without prejudice. Consequently, the dismissal was without prejudice. *See* Fla. R. Civ. P. 1.420(a)(1).